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Republican takes aim at 45th Assembly District

May 16, 2018 | Acorn, The (Agoura Hills, CA)
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OpenURL Link

The new representative for the 45th Assembly District, which includes Calabasas, will be decided in a runoff election June 5. Voters will choose between the two leading candidates from April's special election—Republican Justin Clark and Democrat Jesse Gabriel.

Clark and Gabriel were two of seven candidates on the April 3 ballot. Since neither received more than 50 percent of the vote—Gabriel 32 percent and Clark 25 percent—whichever candidate wins the June election will fill the seat that was left vacant when Matt Dababneh resigned Jan. 1 following accusations of sexual misconduct by several women. The winner will hold Dababneh's seat through the end of the year.

In next month's election, Clark and Gabriel will be on the ballot twice: once for the runoff election to fill Dababneh's seat and again as candidates in the race to qualify for the November election. The top two from the June 5 primary will run against each other in November, regardless of party affiliation, for a full two-year Assembly term.

The 45th District also includes Bell Canyon, Encino and the western San Fernando Valley.

The candidates

Gabriel, a Democrat from Oak Park, is a constitutional rights attorney who is part of a team representing immigrants in a lawsuit against President Trump after he announced he would repeal the Deferred Action for Childhood Arrivals program, known as DACA. The program has protected nearly 800,000 immigrants from deportation since 2012. It also allowed them to obtain work permits. Gabriel wants DACA protected.

Clark, a 19-year-old Republican, is a Calabasas native and a first-year student at Cal State Northridge studying political science. He works at Jeni's Splendid Ice Cream in the Calabasas Commons. Clark said he's always had an interest in politics and said he decided to run for Assembly because he was bothered by Dababneh's actions while he was in office.

"I was just frustrated with his voting record, his corruption," Clark said. "While he was serving as the chairman of the select committee that was investigating Wells Fargo, his campaign for committee for 2016 accepted a large donation from Wells Fargo."

Although young and inexperienced, Clark's second-place showing in the April special election was a not a big surprise. He was the only GOP party member on the ballot.

Gabriel moved to Encino from Santa Monica in July, and Clark said that makes him ineligible to represent the district.

"Article Four of the state constitution states that you must have lived in your district for at least one year at the time of nomination," Clark said.

But he acknowledged the courts are not likely to get involved.

"There was a ruling in 2010 where the court system, citing outdated 1800s case law, said that it's a legislative issue, because the legislature must vet and approve its own members, not the court, so the court tossed it out on the ground that they didn't have jurisdiction."

Clark said he fears a challenge to Gabriel's candidacy in court would be rejected, and the election would be over before he could appeal the decision.

Clark is asking the voters to decide.

"I personally believe, and a lot of voters believe, that someone that's going to represent you should understand the needs of your community and have been a member of that community for more than just a year," Clark said.

Gabriel said the California Supreme Court has made decisions on candidate residency that negate the requirement for a one-year residency.

"Basically any residency requirement over 30 days is unconstitutional," Gabriel said. "The candidate in the other (San Fernando) Valley seat that's open, in the 39th District, they actually moved in after the election, after the seat was vacated, and they're all fine (to run)."

He said if there was any issue with his residency, the Republican Party of California would have drawn attention to it much sooner.

Gabriel said that as someone who grew up in Oak Park—which is close to the 45th District but not in it—he is familiar with the issues facing the region.

"One of my main opponents, who has since endorsed me, was making a big deal out of the fact that she'd lived in the (San Fernando) Valley much longer than I had," Gabriel said. "They made a big deal out of the fact that I grew up in Oak Park. The district includes Calabasas and I was like, 'if you don't want to emphasize the fact that I grew up five miles outside of the district, that's fine.' I don't think people are that expectant. It's not like I moved here from Mars."

2018 ELECTION

Mon., May 21: Last day to register to vote in primary

Tues., May 29: Last day to submit a vote-by-mail ballot

Tues., June 5: Election Day

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- **Citation (apa Style)**
  Bradley, I. (2018, May 16). Republican takes aim at 45th Assembly District.*Acorn, The (Agoura Hills, CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/16BF480A1C6758D8.